BY ORDER OF THE COMMANDER
AIR FORCE TECHNICAL
APPLICATIONS CENTER

AIR FORCE TECHNICAL
APPLICATIONS CENTER
INSTRUCTION 64-101

7 AUGUST 2025

Contracting

RELATIONS WITH INDUSTRY AND NON-GOVERNMENTAL ORGANIZATIONS

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

ACCESSIBILITY: This publication is available for downloading or ordering on the e-Publishing website at **www.e-Publishing.af.mil** and AFTAC SharePoint Online at **https://usaf.dps.mil/sites/AFTAC/pubsandforms/SitePages/Home.aspx** .

RELEASABILITY: There are no releasability restrictions for this publication.

OPR: AFTAC/SDX

Certified by: SD
(Dr. Ralph Bordner)

Supersedes: AFTACI 64-101, 16 October 2017

Pages: 7

This AFTAC Instruction (AFTACI) implements Air Force Policy Directive (AFPD) 64-1, *The Contracting System,* and prescribes procedures and rules for establishing and managing proper relationships with personnel from industry, academic and research organizations, and other non-governmental entities who seek to do business with, partner with, contract with, or otherwise establish working relationships with Air Force Technical Applications Center (AFTAC) or any of its subordinate units or organizations. It does not apply to relationships with other Department of Defense (DoD) and US government agencies. This publication is not a security classification guide. It applies to all personnel assigned to AFTAC and its detachments (Det) and operating locations (OL). This instruction does not apply to Air Force Reserve Command (AFRC), Individual mobilization augmentees (IMA), and other individual reservists administered by Headquarters (HQ) AFRC; however, it does apply to IMAs supporting the AFTAC mission. It does not apply to the Air National Guard. Ensure all records generated as a result of processes prescribed in this publication adhere to AFI 33-322, *Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule (RDS), which is located in the Air Force Records Information Management System (AFRIMS). Refer recommended changes and questions about this publication to the office of primary responsibility (OPR), AFTAC/SDX, using the DAF Form 847, *Recommendation for*

Change of Publication; route DAF Form 847 from your unit through Publications and Forms Manager, AFTAC/A6X.

SUMMARY OF CHANGES

This document has been revised and should be completely reviewed. Changes include outlining the new process that AFTAC uses for vendor contact and possible access. Eliminated the Vendor Access Request (VAR) form since Vendors submit directly to the BAA/CSO mailboxes. Made a few wordsmithing changes to the "appearance of impropriety" verbiage and moved a few lines from the old statement into that statement regarding impropriety. Added a few pertinent acronyms to the Glossary and changed all references from SDQ to SDX.

1. Overview.

1.1. Maintaining proper relationships with contractors and other non-federal entities is crucial to AFTAC's mission accomplishment. While industry, academic, research, and technical organizations provide vital information and expertise to AFTAC's technical missions, US government personnel must be ever mindful of the legal, ethical, and fiscal constraints levied upon relationships with personnel from these organizations. Dialogue with industry and technical experts outside of the US government is an important aspect of successfully accomplishing AFTAC's extremely technical mission set. Types of dialogue include working together to develop solutions to technical problems; researching and incorporating the latest software/hardware into the mission; and keeping abreast of the latest technology available for purchase from private companies. However, any communications with non-governmental organizations must be conducted as part of valid market research or other authorized collaborative efforts and must be conducted in a manner that ensures no particular non-governmental organization is afforded an unfair competitive advantage in future acquisitions.

1.2. Most government employees lack the legal authority to negotiate, bargain, or contract with non-federal entities. Only warranted Contracting Officers may bind the US government or any governmental units or organizations in contract. Non-warranted government employees must refrain from making even the slightest informal tacit agreement on behalf of the US government or any government entity including an agreement to allow access to government facilities and personnel.

1.3. This instruction sets forth procedures and rules for all AFTAC personnel in their relationships with potential contractors, industry personnel, members of academic and technical organizations, and any other non-federal organizations or persons that are potential bidders on any future contracts or that seek to do business with AFTAC or the US government. It applies to all communications with prospective contractors and technical organizations, visits, briefings, presentations or proposals by such organizations to AFTAC or its personnel, and ongoing relationships with potential bidders on AFTAC contracts. In addition, this instruction applies to other information exchanges with individuals and entities that are not part of the US government concerning matters which relate to potential, pending, or ongoing procurements as well as operational technologies and any other non-public information which may be used to measure or define government requirements in present or future procurements. Such information exchanges include, but are not limited to documentary correspondence, e-mail and other electronic correspondence, telephone conversations and video-teleconferences.

1.4. A distinction must be made between contractor employees who are providing services to AFTAC under a current contractual relationship and those contractor employees or other non-governmental personnel who wish to present proposals or work with AFTAC employees on potential or future acquisitions. This instruction does not address relationships with contractor employees working with or in AFTAC on current contracts, except to the extent those employees devote their efforts to the development of future or potential contracts with AFTAC. In other words, this instruction applies when a current contractor employee spends time and effort not on providing the contracted-for services, but instead on proposing new services or products to AFTAC or working with AFTAC personnel on future projects or acquisitions.

2. Specific Responsibilities.

2.1. AFTAC/SDX is the office of primary responsibility (OPR) for ensuring compliance with this instruction. AFTAC/SDX will work closely with AMIC Det 2 OL-A in order to ensure proper involvement with and guidance from warranted Contracting Officers.

2.2. AFTAC/LA will provide legal and ethics advice and guidance to AFTAC/CC, AFTAC/SDX and all AFTAC personnel to ensure compliance with this instruction and all applicable laws and regulations to minimize risks to AFTAC's acquisitions processes.

2.3. All AFTAC personnel, active duty and civilian, will comply with the rules and procedures set forth herein and will conduct relationships with non-federal entities in a manner that is above reproach. All relationships with non-governmental personnel will be conducted impartially and in a manner in which preferential treatment is neither present nor may be inferred or perceived.

3. Communications with Industry and Non-Government Entities.

3.1. Communications that further mission accomplishment with industry personnel, contractor employees, and personnel from other non-governmental entities by all methods, including telephone, video and teleconference, e-mail and messaging, written correspondence, and in-person discussion are encouraged. However, active-duty personnel and US government employees must endeavor to ensure any communications made on behalf of AFTAC, the Air Force, DoD, or the US government are clear and consistent with an officially approved message. Government personnel must not divulge classified or sensitive information to people without ensuring they have both a valid clearance and an official need to know. Employees must not violate federal law or ethics rules in their communications with outside parties (see references in **Attachment 1**).

3.2. Government employees must not divulge non-public, acquisition, or source selection protected information (examples include acquisition strategies, independent government cost estimates, technical evaluations, cost and price analyses, proposal rankings, source selection plans, competitive range determinations and identity and number of bids and any information about current of future AFTAC mission requirements). Government personnel must protect proprietary information from unauthorized release to industry. Government personnel should consult with AFTAC/LA and/or their respective AMIC Det 2 OL-A Contracting Officer when questions about proprietary information arise. Furthermore, government employees must prevent non-federal people from gaining access to information or information systems that may give or provide the appearance of giving a non-government employee or firm an unfair competitive advantage in current or future acquisitions.

3.3. US government employees must refrain from making any communications that commit or could be interpreted to commit AFTAC, the Air Force, DoD, or the US government to contractual or financial obligations. This is called an "unauthorized commitment. US government employees should refrain from requesting quotes, offers, or proposals without making it clear that the request is for informational and /or market research purposes only. US government employees should also refrain from directing a change to a contract or the mere suggestion of a change to a contract. US government employees should refrain from ordering goods or services within the confines of an existing contract without the authority to do so or when said goods or services are not explicitly called for in the contract. Only warranted Contracting Officers may undertake such obligations on behalf of the government and its agencies and organizations.

3.4. Whenever a contractor employee providing service to the government under a current valid contract attempts to "switch gears" and market or sell his employer's products and services to the government, AFTAC employees must follow the guidelines in this instruction and refer the contractor employee to the appropriate Contracting Officer for further discussion.

4. Visits to AFTAC.

4.1. All visits to AFTAC and its subordinate organizations by non-governmental people are a matter of command interest. This includes contractors, academic organizations and other non-government agencies seeking to do business with AFTAC or the US government, making proposals to US government personnel or providing input to future government projects. This does not apply to academic organizations working on, or proposing work on projects associated with EPA's or academic CRADAs. No AFTAC employee should schedule or allow a visit by industry or other non-government persons to AFTAC or any of its subordinate organizations for those purposes except as provided for in this instruction in section 4.3.

4.2. The command point of contact for all visits by non-government personnel who represent a commercial entity is AFTAC/SDX. SDX will coordinate all potential visits to AFTAC and, in conjunction with the office visited and the Visit OPR, ensure that the procedures detailed herein are followed. The purpose for AFTAC/SDX preapproval is to ensure the subject matter of the proposed briefing or content discussed during the visit do not adversely affect ongoing source selections or result in a perception of preferential treatment, favoritism, or unfair competitive advantage.

4.3. Procedures:

4.3.1. An AFTAC employee who desires to host a visit by any non-government person or persons who represent a commercial entity that is seeking to enter into any contractual agreement with AFTAC must first request that the representative submit a capabilities white-paper submission through either the Broad Agency Announcement (BAA) or Commercial Solutions Opening (CSO) acquisition vehicles, located on SAM.gov. Upon receipt by SDX, the white-paper submission will be distributed to the entire AFTAC Subject Matter Expert corps for review. If and when it is determined that a particular capability or scientific approach is of enough use or interest to warrant further investigation, the SME will contact SDX for up-to-date processes on navigating the BAA/CSO process through to a potential award.

4.3.2. Due to the nature of AFTAC work, the size of the scientific community is an ever decreasing one. While the existence of personal relationships with potential non-government AFTAC visitors is not by itself a reason for denial of a meeting; AFTAC personnel must safeguard against the appearance of impropriety or unfair competitive advantage. AFTAC personnel must disclose personal relationships with non-government personnel to AFTAC/SDX by e-mail, prior to the meeting being scheduled.

4.3.3. If the requirements of **paragraphs 4.3.1** are met and should AFTAC find interest in a white paper submission, AMIC Det 2 OL-A will be notified, and a Contracting Officer will be assigned to the acquisition. At that point all communication with the white paper submitter should go through the Contracting Officer to avoid procurement integrity issues that could impede forward progress of the acquisition.

4.3.4. No AFTAC employee, active duty or civilian, is ever authorized to sign any type of document or agreement, including non-disclosure agreements, on behalf of AFTAC, the Air Force, DoD, or the US government. AFTAC employees asked to sign non-disclosure or other agreements in their personal capacities must inform AFTAC/SDX and consult AFTAC/LA prior to signing.

4.3.5. If a face-to-face visit is approved by the Contracting Officer, AFTAC personnel must be careful to abide by the restrictions in **paragraph 3** above concerning proper communications with industry. Employees should be careful to not obligate the AF or AFTAC and to not disclose classified, sensitive, source selection, non-public, acquisition related, or proprietary information. It is highly encouraged that a member of the SDX be present at all meetings and conferences to assist with compliance.

4.3.6. Not later than 3 working days after the approved visit, the Visit OPR will provide AFTAC/SDX with a brief after-action report of the meeting which will include the names and bios (if available) of all persons who visited AFTAC, the names and profiles of all organizations represented by those persons, and a brief summary of the topics discussed. Attached to the report will be copies of any materials, slides, documents, or other information provided to AFTAC by the visitors. AFTAC/SDX will retain these reports and attached materials on file for 10 years.

CREIGHTON A. MULLINS, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

Title 10 USC, Section 2304, *Contracts: Competition Requirements*

Title 10 USC, Section 2305, *Contracts: Planning, Solicitation, Evaluation, and Award Procedures*

Title 18 USC, Section 203, *Compensation to Members of Congress, Officers, and Others in Matters Affecting the Government*

Title 18 USC, Section 205, Activities of Officers and Employees in Claims Against and Other Matters Affecting the Government

Title 18 USC, Section 207, *Restrictions on Former Officers, Employees, and Elected Officials of the Executive and Legislative Branches*

Title 18 USC, Section 1905, *Disclosure of Confidential Information Generally*

Title 41 USC, Sections 2101-2107, *Procurement Integrity Act*

Title 41 USC, Section 3301, *Full and Open Competition*

Executive Order 11222, *Prescribing Standards of Ethical Conduct for Government Officers and Employees*, May 8, 1965

Federal Acquisition Regulation (FAR), 15 Jun 2016

5 CFR 2635, *Standards of Ethical Conduct for Employees of the Executive Branch*

DOD 5500.7-R, *Joint Ethics Regulation (JER),* 15 May 2024

DOD 5400.7-R, *DOD Freedom of Information Act Program*, 5 Apr 2019

AFPD 64-1, *The Contracting System*, 06 Nov 2018

AFMAN 14-303, *Sensitive Compartmented Information Security and Intelligence, Surveillance, and Reconnaissance Systems Cybersecurity and Governance*, 03 Sep 2019

AFI 33-332, *Air Force Privacy and Civil Liberties Program*, 10 Mar 2020

AFI 33-322, *Records Management and Information Governance Program*, 28 Jul 2021

AFMAN 33-326, *Preparing Official Communications*, 31 Jul 2019

Prescribed Forms

None

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AFMAN—Air Force Manual

AFPD—Air Force Policy Directive

AFRIMS—Air Force Records Information Management System

AFTAC—Air Force Technical Applications Center

AFTACI—Air Force Technical Applications Center Instruction

BAA—Broad Agency Announcement

CSO—Commercial Solutions Opening

DET—Detachments

DoD—Department of Defense

CENI—Center Instruction

HQ—Headquarters

IMA—Individual Mobilization Augmentees

OL—Operating Location

OPR—Office of Primary Responsibility

RDS—Records Disposition Schedule

Office Symbols

AFRC—Air Force Reserve Command

AFTAC/A6X—Publications and Forms

AFTAC/CC—Commander

AFTAC/LA—Legal Advisor

AFTAC/SDX—Acquisition Support Branch

AMIC Det 2 OL-A—Contracting

SD—Systems Development Directorate